

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

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PATRICK SMITH,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD Officer OBIKA W. MARSHALL, Badge No. 15720, NYPD Officer GIOVANNI GARCIA, Badge No. 19241, NYPD Officer TIMOTHY SANES, Badge No. 13155, NYPD Officer REMON MIKHAIL, Badge No. 11678, NYPD Officer RAYAN MOHSIN, Badge No. 20781, NYPD Officer DARREN LIN, Badge No. 10845, NYPD Officer JESSE LAWRENCE, Badge No. 11207, NYPD Officer WILLIAM JONES, Badge No. 16166, NYPD Officer JAMES BORRERO, Badge No. 23324, and NYPD Officers JOHN and JANE DOE No. 1 – 15.

Defendants.
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Index No.:

SUMMONS

Basis of Venue:
Location Of Incident

Plaintiff Designates Kings
County as Place of Trial

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
September 26, 2024

By: David R. Kline, Jr.
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Attorneys for Plaintiff

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, NY 10007.

NYPD Officer OBIEKA W. MARSHALL, Badge No. 15720, 78th NYPD Precinct, 65 6th Ave, Brooklyn, NY 11217.

NYPD Officer GIOVANNI GARCIA, Badge No. 19241, 78th NYPD Precinct, 65 6th Ave, Brooklyn, NY 11217.

NYPD Officer TIMOTHY SANES, Badge No. 13155, 20th NYPD Precinct, 120 W 82nd St, New York, NY 10024

NYPD Officer REMON MIKHAIL, Badge No. 11678, 78th NYPD Precinct, 65 6th Ave, Brooklyn, NY 11217.

NYPD Officer RAYAN MOHSIN, Badge No. 20781, 78th NYPD Precinct, 65 6th Ave, Brooklyn, NY 11217.

NYPD Officer DARREN LIN, Badge No. 10845, 76th NYPD Precinct, 191 Union St, Brooklyn, NY 11231.

NYPD Officer JESSE LAWRENCE, Badge No. 11207, 72nd NYPD Precinct, 830 4th Ave, Brooklyn, NY 11232.

NYPD Officer WILLIAM JONES, Badge No. 16166, Strategic Response Group 3, 397 Coney Island Ave, Brooklyn, NY 11218.

NYPD Officer JAMES BORRERO, Badge No. 23324, 72nd NYPD Precinct, 830 4th Ave, Brooklyn, NY 11232.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

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PATRICK SMITH,*Plaintiff,**-against-***THE CITY OF NEW YORK, NYPD Officer OBIEKA W. MARSHALL, Badge No. 15720, NYPD Officer GIOVANNI GARCIA, Badge No. 19241, NYPD Officer TIMOTHY SANES, Badge No. 13155, NYPD Officer REMON MIKHAIL, Badge No. 11678, NYPD Officer RAYAN MOHSIN, Badge No. 20781, NYPD Officer DARREN LIN, Badge No. 10845, NYPD Officer JESSE LAWRENCE, Badge No. 11207, NYPD Officer WILLIAM JONES, Badge No. 16166, NYPD Officer JAMES BORRERO, Badge No. 23324, and NYPD Officers JOHN and JANE DOE No. 1 – 15.***Defendants.*

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TO THE SUPREME COURT OF THE STATE OF NEW YORK:

Plaintiff **PATRICK SMITH**, through his attorneys, DRK Law, LLC, by David R. Kline, Esq. and Charles Cassimer Luskin, Esq., respectfully, upon information and belief, allege the following for this Verified Complaint:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover monetary damages (special, compensatory, and punitive) arising out of defendants' violation of plaintiff's rights as secured by the Constitution of the United State of America, 42 U.S.C. § 1983, the laws of the State and City of New York, and the common law.

Index No.:**VERIFIED COMPLAINT**

Basis of Venue:

Location Of Incident

Plaintiff Designates Kings
County as Place of Trial

THE PARTIES

2. Plaintiff **PATRICK SMITH** is a United States Citizen and was at all times relevant herein a resident of the State of New York.

3. Defendant **THE CITY OF NEW YORK** (“City” or “the City” or “Defendant City”) was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. Defendant **THE CITY OF NEW YORK** maintains the New York City Police Department (“NYPD”), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of New York State law, acting under the direction and supervision of the aforementioned municipal corporation, **THE CITY OF NEW YORK**.

5. Defendant **NYPD Officer OBIEKA W. MARSHALL, Badge No. 15720**, was, at all times relevant to this Complaint, a police officer employed by the **CITY**. At all times relevant herein, defendant **NYPD Officer OBIEKA W. MARSHALL**, was assigned to work at the NYPD 78th Precinct. In this role, defendant **NYPD Officer OBIEKA W. MARSHALL** was a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, she was acting in the scope of her employment and under color of state law.

6. Defendant **NYPD Officer GIOVANNI GARCIA, Badge No. 19241**, was, at all times relevant to this Complaint, a police officer employed by the **CITY**. At all times relevant herein, defendant **NYPD Officer GIOVANNI GARCIA** was assigned to work at the NYPD 78th Precinct. In this role, defendant **NYPD Officer GIOVANNI GARCIA** was a duly

appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, he was acting in the scope of his employment and under color of state law.

7. Defendant **NYPD Officer TIMOTHY SANES, Badge No. 13155**, was, at all times relevant to this Complaint, a police officer employed by the **CITY**. At all times relevant herein, defendant **NYPD Officer TIMOTHY SANES** was assigned to work at the NYPD 78th Precinct. Currently, **NYPD Officer TIMOTHY SANES** is assigned to work at the NYPD 20th Precinct. In this role, defendant **NYPD Officer TIMOTHY SANES** was a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, he was acting in the scope of his employment and under color of state law.

8. Defendant **NYPD Officer REMON MIKHAIL, Badge No. 11678**, was, at all times relevant to this Complaint, a police officer employed by the **CITY**. At all times relevant herein, defendant **NYPD Officer REMON MIKHAIL** was assigned to work at the NYPD 78th Precinct. In this role, defendant **NYPD Officer REMON MIKHAIL** was a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, he was acting in the scope of his employment and under color of state law.

9. Defendant **NYPD Officer RAYAN MOHSIN, Badge No. 20781**, was, at all times relevant to this Complaint, a police officer employed by the **CITY**. At all times relevant herein, defendant **NYPD Officer RAYAN MOHSIN** was assigned to work at the NYPD 78th Precinct. In this role, defendant **NYPD Officer RAYAN MOHSIN** was a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, he was acting in the scope of his employment and under color of state law.

10. Defendant **NYPD Officer DARREN LIN, Badge No. 10845**, was, at all times relevant to this Complaint, a police officer employed by the **CITY**. At all times relevant

herein, defendant **NYPD Officer DARREN LIN** was assigned to work at the NYPD 78th Precinct. Currently, **NYPD Officer DARREN LIN** is assigned to work at the NYPD 76th Precinct. In this role, defendant **NYPD Officer DARREN LIN** was a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, he was acting in the scope of his employment and under color of state law.

11. Defendant **NYPD Officer JESSE LAWRENCE, Badge No. 11207**, was, at all times relevant to this Complaint, a police officer employed by the **CITY**. At all times relevant herein, defendant **NYPD Officer JESSE LAWRENCE** was assigned to work at the NYPD 78th Precinct. Currently, **NYPD Officer JESSE LAWRENCE** is assigned to work at the NYPD 72nd Precinct. In this role, defendant **NYPD Officer JESSE LAWRENCE** was a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, he was acting in the scope of his employment and under color of state law.

12. Defendant **NYPD Officer WILLIAM JONES, Badge No. 16166**, was, at all times relevant to this Complaint, a police officer employed by the **CITY**. At all times relevant herein, defendant **NYPD Officer WILLIAM JONES** was assigned to work at the NYPD 78th Precinct. Currently, **NYPD Officer WILLIAM JONES** is assigned to work at the Strategic Response Group-3, Brooklyn,, which accepts service via the main office at 1 Police Plaza. In this role, defendant **NYPD Officer WILLIAM JONES** was a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, he was acting in the scope of his employment and under color of state law.

13. Defendant **NYPD Officer JAMES BORRERO, Badge No. 23324**, was, at all times relevant to this Complaint, a police officer employed by the **CITY**. At all times relevant herein, defendant **NYPD Officer JAMES BORRERO** was assigned to work at the

NYPD 78th Precinct. Currently, **NYPD Officer JAMES BORRERO** is assigned to work at the NYPD 72nd Precinct. In this role, defendant **NYPD Officer JAMES BORRERO** was a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, he was acting in the scope of his employment and under color of state law.

14. Defendant **NYPD Officers JOHN and JANE DOE No. 1 – 15**, were, at all times relevant to this Complaint, police officers employed by the **CITY**. In this role, Defendant **NYPD Officers JOHN and JANE DOE No. 1 – 15** were duly appointed and acting as officers, servants, employees, and/or agents of the City of New York. At all relevant times, they were acting in the scope of their employment and under color of state law.

JURISDICTION AND VENUE

15. This action is brought pursuant to the laws of the City and State of New York, 42 U.S.C. Act of 1871 § § 1983 and 1988, the Fourth and Fourteenth Amendments to the United States Constitution, *inter alia*.

16. Venue is proper in this county as the transactions and occurrences took place in Kings County, City and State of New York.

PROCEDURAL REUIREMENTS

17. Plaintiff has fulfilled all procedural requirements for filing suit, including complying with GML § 50-e.

18. Plaintiff served a Notice of Claim (“NOC”) on defendant **CITY** via the New York City, Office of the Comptroller’s “eClaim system.”

19. On February 6, 2024, plaintiff testified at a GML § 50-h Hearing.

20. More than thirty (30) days have elapsed since the filing of the NOC in this case.

21. As of the date of this Verified Complaint, defendant **CITY** has neglected and/or refused to adjust and/or pay the Plaintiff's claim.

22. This action was commenced within one year and ninety days of the occurrence of the actions and events upon which this action is based, for those causes of action that are governed by such a timeframe.

JURY DEMAND

23. Plaintiff demands a trial by jury on each and every cause of action.

STATEMENT OF FACTS

24. In the evening hours of December 23, 2022, plaintiff's partner had called 9-1-1 and reported that she and plaintiff had a verbal argument.

25. Plaintiff's partner did not report any physical acts of violence, threats, or any other illegal activity to the dispatcher.

26. At approximately 8:15 p.m., NYPD arrived at plaintiff's residence and repeatedly banged on the front door.

27. Plaintiff's partner met the officers at the front door and gave them permission to enter.

28. Shortly after entering the apartment, the defendant NYPD officers questioned both plaintiff and his partner.

29. **NYPD Officer OBIEKA W. MARSHALL** questioned plaintiff in his bedroom. **NYPD Officer OBIEKA W. MARSHALL** spoke at length with plaintiff and at no point during their conversation did plaintiff lose consciousness, become belligerent, exhibit any signs of a experiencing a mental health episode, or violate the law in any way.

30. **NYPD Officer GIOVANNI GARCIA** questioned the plaintiff's partner. At no point during **NYPD GIOVANNI GARCIA**'s questioning of plaintiff's partner did she indicate that plaintiff was a threat to himself or other or state that he had violated the law in any way.

31. After speaking with plaintiff and his partner, **NYPD Officer OBIEKA W. MARSHALL** and **NYPD Officer GIOVANNI GARCIA** told plaintiff that he was not under arrest because he had not committed any crime.

32. Nevertheless, **NYPD Officer OBIEKA W. MARSHALL** and **NYPD Officer GIOVANNI GARCIA** remained inside the apartment and demanded that plaintiff leave his home with them.

33. **NYPD Officer OBIEKA W. MARSHALL** and **NYPD Officer GIOVANNI GARCIA** did not relent and refused to leave the apartment unless plaintiff left as well. To defuse the situation plaintiff packed a small overnight bag and voluntarily left the apartment.

34. Defendant **NYPD Officer OBIEKA W. MARSHALL** and **NYPD Officer GIOVANNI GARCIA** knew at the time that they left the apartment with plaintiff that he had an alternate place to stay nearby and he was intending to go sleep there safely.

35. As plaintiff walked out of the apartment **NYPD Officer OBIEKA W. MARSHALL** and **NYPD Officer GIOVANNI GARCIA** followed closely behind.

36. Without any justification **NYPD Officer OBIEKA W. MARSHALL** and **NYPD Officer GIOVANNI GARCIA** then demanded that plaintiff get into a nearby ambulance that they had called.

37. In no need of medical attention, plaintiff again asked **NYPD Officer OBIEKA W. MARSHALL** and **NYPD Officer GIOVANNI GARCIA** if he was under arrest.

38. **NYPD Officer OBIEKA W. MARSHALL** and **NYPD Officer GIOVANNI GARCIA** again confirmed that he was not under arrest.

39. Plaintiff then respectfully declined **NYPD Officer OBIEKA W. MARSHALL** and **NYPD Officer GIOVANNI GARCIA**'s request and turned to walk towards Sixth Avenue.

40. Suddenly, **NYPD Officer OBIEKA W. MARSHALL** and **NYPD Officer GIOVANNI GARCIA** forcibly grabbed plaintiff and shoved him into a nearby fence.

41. At no time prior to his unlawful detention did plaintiff trip, lose consciousness, stumble into the road, or otherwise pose a danger to himself in any way.

42. **NYPD Officer OBIEKA W. MARSHALL**, **NYPD Officer GIOVANNI GARCIA**, began to pummel plaintiff; repeatedly punching him with closed fists in his head, face, neck, and body.

43. **NYPD Officer OBIEKA W. MARSHALL**, **NYPD Officer GIOVANNI GARCIA** put out a radio call for assistance, which caused numerous other NYPD officers in the area to respond immediately to the location where plaintiff was being beaten on the ground.

44. The NYPD Officers who responded to the plaintiff's location and physically beat, hit, punched, kicked plaintiff were: **NYPD Officer JOHN and JANE DOE 1-5**; **NYPD Officer REMON MIKHAIL**; **NYPD Officer RAYAN MOHSIN**, **NYPD Officer DARREN**

LIN; NYPD Officer JESSE LAWRENCE; NYPD Officer WILLIAM JONES, and; NYPD Officer JAMES BORRERO (collectively, the “**Other Assaulting Officers.**”)

45. To shield himself from the blows of **NYPD Officer OBIEKA W. MARSHALL, NYPD Officer GIOVANNI GARCIA, and the Other Assaulting Officers,** plaintiff fell to the ground and curled up into a fetal position.

46. **NYPD Officer OBIEKA W. MARSHALL, NYPD Officer GIOVANNI GARCIA, and the Other Assaulting Officers,** surrounded plaintiff as he lay on the ground and also began to punch and kick plaintiff.

47. **NYPD Officer OBIEKA W. MARSHALL, NYPD Officer GIOVANNI GARCIA, and the Other Assaulting Officers** then grabbed plaintiff’s limbs and deliberately manipulated them in such a way so as to cause severe injury.

48. Initially, **NYPD Officer OBIEKA W. MARSHALL, NYPD Officer GIOVANNI GARCIA, and the Other Assaulting Officers** took plaintiff’s left elbow and bent it backwards, breaking it.

49. Next, **NYPD Officer OBIEKA W. MARSHALL, NYPD Officer GIOVANNI GARCIA, and the Other Assaulting Officers** deliberately stomped in his right hand, breaking it.

50. **NYPD Officer OBIEKA W. MARSHALL, NYPD Officer GIOVANNI GARCIA, and the Other Assaulting Officers** then grabbed plaintiff’s right arm and wrenched it backwards with sufficient force to rip his bicep muscle and associated ligaments off his humerus bone, tearing his rotator cuff and completely separating his shoulder from its socket.

51. At no point during this vicious assault did plaintiff strike, punch, kick, or otherwise assault and/or resist **NYPD Officer OBIEKA W. MARSHALL, NYPD Officer GIOVANNI GARCIA**, and the **Other Assaulting Officers**.

52. **NYPD Officer OBIEKA W. MARSHALL, NYPD Officer GIOVANNI GARCIA**, and the **Other Assaulting Officers** then pinned plaintiff's arms behind his back and cuffed his wrists together with metal handcuffs.

53. Plaintiff was fully aware of the **NYPD Officer OBIEKA W. MARSHALL, NYPD Officer GIOVANNI GARCIA**, and the **Other Assaulting Officers'** confinement of him.

54. Due to the severity of the injuries sustained by plaintiff he was taken in custody to Brookdale Hospital for treatment by Emergency Medical Services.

55. On December 24, 2022, at approximately 7:00 a.m., plaintiff was transported to the 78th NYPD Precinct by **NYPD Officers JOHN and JANE DOE 6-10**, where he remained for several more hours before being taken to Kings County Central Booking for arraignment.

56. While at the 78th NYPD Precinct, plaintiff was illegally fingerprinted, photographed, searched, and interrogated by defendant **NYPD Officers JOHN and JANE DOE 6-10**.

57. While the plaintiff was in custody, **NYPD Officer OBIEKA W. MARSHALL, NYPD Officer GIOVANNI GARCIA** and **NYPD Officer TIMOTHY SANES** knowingly submitted false and/or inaccurate information to the Kings County District Attorney's Office wherein they maliciously and erroneously claimed plaintiff had committed a crime.

58. Specifically, **NYPD Officer OBIEKA W. MARSHALL**, **NYPD Officer GIOVANNI GARCIA** and **NYPD Officer TIMOTHY SANES** falsely claimed that plaintiff had assaulted NYPD officers by punching, attempting to punch, and generally using physical force against NYPD officers, and that he resisted lawful arrest—claims that they knew to be false.

59. On information and belief, **NYPD Officer OBIEKA W. MARSHALL**, **NYPD Officer GIOVANNI GARCIA** and **NYPD Officer TIMOTHY SANES** made those false claims in order to justify their own criminal acts against the plaintiff and to avoid any punishment or consequences for their vicious assault.

60. At arraignment plaintiff was charged, via criminal complaint, with several fictitious counts of Assault in the Second Degree (NY PL § 120.05); Assault in the Third Degree (NY PL § 120.00); Obstruction of Governmental Administration (NY PL § 195.05); Resisting Arrest (NY PL § 205.30); Attempted Assault in the Third Degree (NY PL § 120.00); and Harassment in the Second Degree (NY PL § 240.26).

61. Plaintiff was arraigned on December 24, 2022, and released on his own recognizance, finally leaving custody at the criminal courthouse on December 25, 2022.

62. Immediately after plaintiff was released from custody, he went directly to CityMD where he received imaging; x-rays of his left elbow and right hand both revealed fractures.

63. The CityMD medical staff referred plaintiff to an orthopedist and a neurologist, who in turn sent him directly to an orthopedic surgeon.

64. As a direct result of defendant NYPD officers' actions in this matter, plaintiff suffered a complete tear of his coracoclavicular ligament; anterior dislocation of his

shoulder; a closed fracture of the head of the left radius; brachial plexopathy of the right upper limb; and a full thickness rotator cuff tear.

65. In March of 2023 plaintiff underwent arthroscopic surgery with acromioplasty, distal clavicle resection, and rotator cuff repair. Plaintiff's surgery was followed by months of grueling physical therapy.

66. As a direct result of the assault by defendant NYPD officers, plaintiff suffered permanent loss of range of motion in his elbow and shoulder and is unable to fully straighten his left arm; he can no longer engage to the same extent with the activities he enjoyed prior to this incident, such as sports or picking up and holding his daughter.

67. After his assault, plaintiff promptly began treating his emotional and psychological injuries. Plaintiff was diagnosed with Post Traumatic Stress Disorder ("PTSD") and began receiving therapy four days per week. Plaintiff continues to receive mental health counseling weekly.

68. As a result of this incident, plaintiff now views his life as divided into two distinct portions: before and after his assault. Plaintiff reports feeling anxious, terrified, depressed, and humiliated by the incident. He feels that it has negatively impacted every aspect of his daily life, from work to playing with his young daughter.

69. On June 30, 2023, after several in person court appearances, all of the false charges brought against plaintiff were dismissed.

70. At no point relevant herein did plaintiff violate any laws or provide any lawful basis for his detention.

71. At no point relevant herein did plaintiff resist arrest and/or assault anyone.

72. At no point relevant herein did plaintiff consent to his detention, confinement, or arrest.

73. At no point relevant herein did defendant NYPD officers have the probable cause necessary to arrest plaintiff.

74. At no point relevant herein did defendant NYPD officers have a valid judicial warrant to arrest plaintiff.

75. At no point relevant herein did defendant NYPD officers have the legal justification to assault and batter plaintiff.

76. As a direct result of Defendants' actions, plaintiff spent approximately two (2) days illegally held in custody, endured great physical pain, is now permanently limited in his range of motion, suffered emotional and psychological injury, and missed time from work.

STATE LAW CLAIMS

CAUSE OF ACTION ONE Violations of New York State Constitution (Against All NYPD Defendants)

77. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs as if set forth herein.

78. The defendant NYPD officers were acting in their official capacities as NYPD officers employees and under color of state law.

79. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which is forbidden by the Constitution of the State of New York.

80. Specifically, defendants violated plaintiff's rights with respect to New York State Constitution, Article 1, § § 11 and 12, including the right to due process of law, *inter alia*.

81. As a direct and proximate result of the foregoing, plaintiff, sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, conscious pain and suffering, and physical injuries to his person.

CAUSE OF ACTION TWO
Malicious Prosecution
(Against NYPD Officer OBIEKA W. MARSHALL, NYPD Officer GIOVANNI GARCIA
NYPD Officer TIMOTHY SANES and the CITY Defendants)

82. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

83. The CITY Defendant, and NYPD Officer OBIEKA W. MARSHALL, NYPD Officer GIOVANNI GARCIA and NYPD Officer TIMOTHY SANES, acting in concert, did, without probable cause, maliciously prosecute plaintiff insofar as they made false statements to prosecuting authorities that plaintiff had assaulted or attempted to assault NYPD Officer OBIEKA W. MARSHALL and NYPD Officer GIOVANNI GARCIA.

84. Those false statements were made with the intent to cover up their own crimes and falsely justify their brutal beating of plaintiff.

85. The criminal proceeding against plaintiff terminated favorably in that it was dismissed.

86. The defendants were acting in their official capacities as NYPD members and officers, under color of law.

87. Defendant CITY, as employer of NYPD Officer OBIEKA W. MARSHALL, NYPD Officer GIOVANNI GARCIA and NYPD Officer TIMOTHY SANES, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

88. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION THREE
Violation of The New York City Administrative Code § 8-802 and § 8-803,
Unlawful Search and Seizure
(Against All Defendants)

89. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

90. The **CITY** defendant and each individual NYPD defendant, acting in concert, did, without probable cause, rob Plaintiff of his freedom of movement.

91. Plaintiff is a "person aggrieved," as defined by New York City Administrative Code § 8-801.

92. As detailed in the preceding paragraphs, defendant NYPD Officers did confine plaintiff without probable cause.

93. Plaintiff was conscious of his unlawful confinement.

94. Plaintiff did not consent to his unlawful confinement.

95. The defendant NYPD Officers each deprived plaintiff of his freedom of movement knowingly, intentionally, recklessly, and negligently.

96. Defendant NYPD Officers are "covered individuals," as defined by New York City Administrative Code § 8-801.

97. The defendants were acting in their official capacities as NYPD officers and members, under color of law.

98. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

99. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

100. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION FOUR
Violation of The New York City Administrative Code § 8-802 and § 8-803,
Unlawful Use of Excessive Force
(Against All Defendants)

101. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

102. The **CITY** defendant and each individual NYPD defendant, acting in concert, did, without probable cause, use excessive force against plaintiff.

103. Plaintiff is a "person aggrieved," as defined by New York City Administrative Code § 8-801.

104. The defendant NYPD Officers, acting in concert and under color of state law, did, without probable cause or legal justification, use excessive force against plaintiff.

105. As detailed in the preceding paragraphs, defendant NYPD Officers did, *inter alia*, physically grab plaintiff and use excessive force against him. Moreover, defendant NYPD officers did point their guns directly at his face and head.

106. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

107. Defendant NYPD officers are “covered individuals,” as defined by New York City Administrative Code § 8-801.

108. The defendants were acting in their official capacities as NYPD officers and members, under color of law.

109. Those defendant NYPD officers that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

110. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

111. As a direct and proximate cause of the defendants’ actions in this matter, plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION FIVE
Common Law False Arrest and Unlawful Imprisonment
(Against NYPD Defendants)

112. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

113. The defendant NYPD officers did intentionally and unlawfully confine and imprison plaintiff.

114. Defendant NYPD officers intended to confine plaintiff and, in fact, confined plaintiff.

115. Plaintiff was conscious of his confinement.

116. Plaintiff did not consent to his confinement.

117. The defendant NYPD officers did not have a valid judicial warrant for plaintiff's arrest, nor was their confinement of plaintiff otherwise privileged.

118. Those defendant NYPD officers that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

119. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries, and physical injuries.

CAUSE OF ACTION SIX
Common Law Assault
(Against NYPD Defendants)

120. The Plaintiff repeats and realleges every allegation set for in the preceding paragraphs.

121. Defendant NYPD officers, individually and in concert, did intentionally assault plaintiff.

122. The defendant NYPD officers did, without lawful justification, threaten severe violence against plaintiff.

123. The defendant NYPD officers did have the apparent means to carry out such violence against plaintiff, and in fact, did severe and horrific violence to plaintiff.

124. Those defendant officers that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

125. As a direct and proximate result of the foregoing, plaintiff sustained, *inter alia*, fear, anguish, terror, emotional distress, severe emotional distress, mental anguish, shock, apprehension, embarrassment, humiliation, conscious pain and suffering, and injuries to his person.

CAUSE OF ACTION SEVEN

Common Law Battery
(Against NYPD Defendants)

126. The Plaintiff repeats and realleges every allegation set for in the preceding paragraphs.

127. Defendant NYPD officers, individually and in concert, did intentionally batter plaintiff.

128. The defendant NYPD officers did, without lawful justification, make offensive and unwanted contact with plaintiff's person.

129. The defendant NYPD officers did beat plaintiff about his head, neck, body, and extremities, causing severe and permanent physical injury.

130. Those defendant officers that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent

such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

131. As a direct and proximate result of the foregoing, plaintiff sustained, *inter alia*, fear, anguish, terror, emotional distress, severe emotional distress, mental anguish, shock, apprehension, embarrassment, humiliation, conscious pain and suffering, and injuries to his person.

CAUSE OF ACTION EIGHT
Negligent Infliction of Emotional Distress
(Against NYPD Defendants)

132. Plaintiff repeats and realleges every allegation set for in the preceding paragraphs.

133. Defendant NYPD officers, individually and in concert, negligently engaged in conduct against plaintiff that was so outrageous in character and extreme in degree, as to go beyond all possible bounds of decency.

134. Those defendant officers that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

135. The defendant NYPD officers conduct towards plaintiff was extreme and outrageous.

136. The defendant NYPD officers conduct had a substantial probability of causing severe emotional distress to Plaintiff.

137. As a direct and proximate result of the foregoing, plaintiff sustained, *inter alia*, fear, anguish, terror, emotional distress, severe emotional distress, mental anguish, shock,

apprehension, embarrassment, humiliation, conscious pain and suffering, and injuries to his person.

CAUSE OF ACTION NINE
Intentional Infliction of Emotional Distress
(Against NYPD Defendants)

138. Plaintiff repeats and realleges every allegation set for in the preceding paragraphs.

139. Defendant NYPD officers did, individually and in concert, intentionally engage in conduct against plaintiff that was so outrageous in character and extreme in degree, as to go beyond all possible bounds of decency.

140. Those NYPD officers that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

141. The defendant NYPD officers conduct towards plaintiff was extreme and outrageous.

142. The NYPD officers conduct had a substantial probability of causing severe emotional distress to Plaintiff.

143. As a direct and proximate result of the foregoing, plaintiff sustained, *inter alia*, fear, anguish, terror, emotional distress, severe emotional distress, mental anguish, shock, apprehension, embarrassment, humiliation, conscious pain and suffering, and injuries to his person.

CAUSE OF ACTION TEN
Negligent Hiring and Retention
(Against CITY Defendant)

144. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

145. Upon information and belief, the NYPD officers involved in this incident were unfit and incompetent to serve as police officers.

146. Upon information and belief, Defendant **CITY's** negligence in screening, hiring, training, disciplining, and retaining these defendant NYPD officers caused or proximately caused each of plaintiff's injuries.

FEDERAL LAW CLAIMS

CAUSE OF ACTION ELEVEN
42 U.S. Code § 1983 – Deprivation of Fourth Amendment Right to be Free
from Unreasonable Searches and Seizure
(Against All Defendants)

147. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

148. The **CITY** Defendant and each individual Defendant NYPD Officers, acting in concert, did willfully, knowingly, and with the specific intent, did deprive Plaintiff of his constitutional rights secured by 42 U.S.C. § 1983 and the Fourth Amendment to the United States Constitution.

149. The **CITY** Defendant and each individual NYPD Defendant, acting in concert, did, without probable cause, rob plaintiff of his freedom of movement.

150. As detailed in the preceding paragraphs, defendants did physically confine plaintiff without probable cause.

151. Plaintiff was conscious of his unlawful confinement.

152. Plaintiff did not consent to his unlawful confinement.

153. The defendants each deprived plaintiff knowingly, intentionally, recklessly, and negligently.

154. The defendants were acting in their official capacities as NYPD members and officers, under color of law.

155. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

156. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

157. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, inter alia, physical, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION TWELVE
42 U.S. Code § 1983 – Malicious Prosecution
(Against NYPD Officer OBIEKA W. MARSHALL, NYPD Officer GIOVANNI
GARCIA, NYPD Officer TIMOTHY SANES and CITY Defendants)

158. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

159. The **CITY** Defendant, **NYPD Officer OBIEKA W. MARSHALL, NYPD Officer GIOVANNI GARCIA** and **NYPD Officer TIMOTHY SANES**, did willfully,

knowingly, and with the specific intent, did deprive plaintiff of his constitutional rights secured by 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments the United States Constitution.

160. The **CITY** Defendant, **NYPD Officer OBIEKA W. MARSHALL, NYPD Officer GIOVANNI GARCIA** and **NYPD Officer TIMOTHY SANES**, acting in concert, did, without probable maliciously prosecute plaintiff.

161. The defendants each deprived plaintiff knowingly, intentionally, recklessly, and negligently.

162. The defendants were acting in their official capacities as NYPD members and officers, under color of law.

163. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

164. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, inter alia, physical, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION THIRTEEN
42 U.S. Code § 1983 – Deprivation of Fourteenth Amendment Right of Due
Process / Fourth Amendment Excessive Force
(Against All Defendants)

165. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

166. The **CITY** defendants and each individual defendant NYPD Officer, acting in concert, did willfully, knowingly, and with the specific intent, did deprive plaintiff of his constitutional rights secured by 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the United States Constitution.

167. The **CITY** defendant and each individual NYPD defendant, acting in concert, did, without probable cause, use excessive force against plaintiff.

168. As detailed in the preceding paragraphs, Defendant NYPD Officers did, *inter alia*, physically grab plaintiff and use excessive force against him, causing him severe injuries.

169. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

170. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

171. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

WHEREFORE, Plaintiff **PATRICK SMITH** respectfully requests judgement against Defendants as follows:

- a. An award of compensatory damages against all defendants in an amount to be determined at trial.
- b. An award of special damages against all defendants in an amount to be determined at trial.
- c. An award of punitive damages against all defendants in an amount to be determined at trial.
- d. An award of reasonable attorney's fees and costs.

- e. Such other relief that this Courts deems just and proper, together with attorney's fees, interest, costs, and disbursements.

Dated: Brooklyn, New York
September 26, 2024

By: David R. Kline, Jr.
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Attorneys for Plaintiff

ATTORNEY VERIFICATION

David R. Kline, esq., an attorney duly licensed to practice law in the Courts of the State of New York, affirms and states as following under penalty of perjury:

1. I am a member of the law firm of **DRK LAW, LLC**.
2. I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true.
3. My belief, as to those matters therein not stated upon personal knowledge, are based upon facts, records, and other pertinent information contained in my files.
4. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein, I maintain my office.

Dated: Brooklyn, New York
September 26, 2024

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